MINUTES

REGULAR CITY COMMISSION MEETING
MONDAY, MAY 4, 2026, AT 6:00 P.M.

CITY OF ST. AUGUSTINE BEACH, 2200 A1A South, St. Augustine Beach, FL 32080

I. CALL TO ORDER

Mayor Sweeny called the meeting to order at 6:00 p.m.

II. PLEDGE OF ALLEGIANCE

The Commission recited the Pledge of Allegiance.

III. ROLL CALL

Present: Mayor Beth Sweeny, Vice Mayor Virginia Morgan, and Commissioners Undine C. George and Donald Samora.

Commissioner Dylan Rumrell was absent.

Also Present: City Manager Max Royle, Police Chief Daniel Carswell, City Attorney John Steinmetz, Finance Director Patty Douylliez, City Clerk Dariana Fitzgerald, Building Official Brian Law, Public Works Director Russell Adams, and Engineering Director Jason Sparks.

Motion: To excuse Commissioner Rumrell's absence. **Moved by** Mayor Sweeny, **Seconded by** Commissioner Samora. Motion passed unanimously.

IV. APPROVAL OF MINUTES OF THE APRIL 6, 2026, REGULAR COMMISSION MEETING

Motion: To approve the minutes of the April 6, 2026, regular Commission meeting. **Moved by** Commissioner George, **Seconded by** Commissioner Samora. Motion passed unanimously.

V. ADDITIONS OR DELETIONS OF THE AGENDA

There were none.

VI. CHANGES TO THE ORDER OF TOPICS ON THE AGENDA

There were none.

VII. PRESENTATIONS

A. Report by Mr. Reuben Franklin, St. Augustine Assistant City Manager, Regarding the STAR Circulator for the Nights of Lights Event This Year

Mr. Reuben Franklin, Assistant City Manager for the City of St. Augustine, provided an update on the Nights of Lights STAR Circulator shuttle operated between the City of St. Augustine and the City of St. Augustine Beach. He reported that the pilot program was successful, transporting approximately 16,000 riders during evening operations and requiring additional buses to meet

demand. Feedback was largely positive, with concerns primarily related to capacity and wait times, which were addressed as the program progressed. Mr. Franklin requested authorization to operate the circulator again during the upcoming Nights of Lights season, noting the estimated cost of approximately $40,000 for service from 5:00 p.m. to midnight.

Mr. Franklin also discussed the potential for expanding the circulator into a year-round service. He explained that, unlike the Nights of Lights operation, a year-round route could cross the Bridge of Lions, include a stop at the Plaza de la Constitución, and provide more direct access between destinations. He indicated the goal would be service intervals of approximately 15 to 20 minutes, potentially operating on peak days such as weekends. He noted that any future proposal would include coordination with Sunshine Bus services. Commissioners expressed appreciation for the program, shared positive personal experiences using the shuttle, and indicated interest in reviewing a future proposal for expanded service.

VIII. PUBLIC COMMENTS

Brenda Dirkse, 638 Bowers Court, St. Augustine Beach, FL, provided a handout [Exhibit A] and addressed the Commission as a tobacco treatment specialist and representative of Tobacco Free St. Johns. She referenced recent action by the St. Johns County Board of County Commissioners to adopt an ordinance prohibiting smoking and vaping at county beaches and most county parks. Ms. Dirkse noted that Ocean Hammock Park and Lakeside Park currently remain exempt. She respectfully requested that the City consider similar restrictions to promote public health and align with county-wide efforts to reduce tobacco use in public spaces.

Thomas Reynolds, Landing, St. Augustine, FL, displayed a photograph [Exhibit D] and spoke about the continued use of horse-drawn carriages in St. Augustine. He urged consideration of horseless carriage alternatives, citing concerns related to animal welfare, public safety, traffic congestion, and heat conditions affecting horses operating in downtown areas. Mr. Reynolds suggested that modern, non-animal carriage options could provide a similar historic and tourism experience without the ethical and operational issues associated with live animals.

Several residents, business owners, and visitors addressed the Commission regarding the proposed SUN Trail River-to-Sea Loop along A1A Beach Boulevard. The predominant concern expressed was public safety, particularly the introduction of a two-way, multi-use trail in a densely developed corridor with numerous residential driveways, businesses, and intersections. Speakers cited risks involving pedestrians, bicyclists, e-bikes, vehicles, and first responders, noting potential delays to emergency response from Fire Station No. 7 during peak traffic and tourist seasons. Additional concerns included increased congestion, conflicts at driveway crossings, liability exposure, and the absence of required stops for trail users. Multiple commenters stated that residents and business owners were not adequately notified during project development and expressed frustration that meaningful public input occurred only after design progress had reached an advanced stage. Speakers also objected to the loss of existing sidewalks, green space, and neighborhood character along the east side of Beach Boulevard, emphasizing impacts to elderly residents, families, individuals with mobility challenges, and pets. While several commenters voiced general support for the SUN Trail concept, they urged relocation of the trail to a safer alternative alignment on State Road A1A (Jimmy Buffet Memorial Highway), or along other less congested corridors, rather than through the heart of St. Augustine Beach.

Speakers included:

Steve Cupolo, 661 A1A Beach Blvd, St. Augustine Beach, FL

Susan Daly, 440 Ocean Grove Circle, St. Augustine Beach, FL

Donald Davis, 880 A1A Beach Blvd, St. Augustine Beach, FL

Mary Grace Drucker, 421 Ocean Grove Circle, St. Augustine Beach, FL

David Dunmead, 25 Bermuda Run Way, St. Augustine Beach, FL

Lee Geanuleas, 233 N Forest Dune Drive, St. Augustine Beach, FL [Exhibit B, a rendering of Segment 3 showing a curb and grass divider between the road and path]

Heidi Hanstein, 600 A1A Beach Blvd, St. Augustine Beach, FL

Linda Hauver, 417 Ocean Grove Circle, St. Augustine Beach, FL [Exhibit C, a flyer to sign a petition against the SUN Trail's location]

William Jones, St. Augustine Beach, FL, President, SAB Civic Association

Sally Lewis, 880 A1A Beach Blvd, St. Augustine Beach, FL

Ken Morgan, 704 Ocean Palm Way, St. Augustine Beach, FL

Gloria Worley, 700 A1A Beach Blvd, St. Augustine Beach, FL, Owner, Mango Mangos

The following individuals submitted a comment card opposing the SUN Trail's proposed location on A1A Beach Boulevard, but opted not to speak:

Annette Allen, 740 Ocean Palm Way, St. Augustine Beach, FL

Ronald Allen, 740 Ocean Palm Way, St. Augustine Beach, FL

Monika Boutwell, 1508 Makarios Drive, St. Augustine Beach, FL

Tim Garvin, 464 Ocean Grove Circle, St. Augustine Beach, FL

Lori Harrington, 880 A1A Beach Blvd, St. Augustine Beach, FL

Mary L. Kelly, 880 A1A Beach Blvd, St. Augustine Beach, FL

Sally Nichols, 115 15th Street, St. Augustine Beach, FL

Marc Vallen, 708 Ocean Palm Way, St. Augustine Beach, FL

IX. COMMISSIONER COMMENTS

Commissioner George commented that she had planned to ask to have an item placed on the June agenda to officially oppose the SUN Trail location. Commissioners discussed the proposed SUN Trail River-to-Sea Loop project, acknowledging the volume of public input received and expressing shared concerns regarding the current design as presented. Several Commissioners emphasized that, while they do not control the project, it was important to clearly communicate to St. Johns County that the Commission is dissatisfied with the proposed alignment and believes additional engineering analysis, design refinement, and public engagement are necessary. Commissioners discussed options including requesting a workshop with County representatives, continuing dialogue with project staff to understand how prior feedback has been addressed, and potentially drafting a resolution expressing opposition to the current design without prescribing a specific alternative. Questions were raised regarding whether alignments along State Road A1A had been fully evaluated, the presence and adequacy of curbing and safety buffers, and the need for clearer dissemination of accurate project information to the public.

Commissioner George reported that the Cultural Council has issued a Request for Proposals to advance final design and infrastructure improvements using grant funding and that coordination among stakeholders is ongoing.

Vice Mayor Morgan noted that the Northeast Florida Regional Council did not meet last month and requested improved communication regarding Comprehensive Planning and Zoning Board

(CPZB) discussions and suggested staff provide draft minutes or at least informal summaries the Commission reviews topics related to CPZB decisions.

Mayor Sweeny reported that the State Legislature would go into final budget review soon and that she will traveling to Washington D.C. with the American Flood Coalition at the end of this month regarding the current state of FEMA funding.

Commissioner Samora noted that the Visitors and Conventions Bureau (VCB) will hold their State of the Tourism Industry meeting on May 13th at Embassy Suites.

X. PUBLIC HEARINGS

1. Conditional Use Permit to Construct a Residence in a Commercial Land Use District at 610 A1A Beach Boulevard (Presenter: Patrick Doty, City Planner)

City Planner Patrick Doty introduced himself as the new Senior Planner and presented a PowerPoint [Exhibit E] on a request for a Conditional Use Permit to allow construction of a single-family residence on a commercially zoned parcel located at 610 A1A Beach Boulevard. The approximately 0.14-acre property is vacant and designated Commercial under both zoning and future land use. Mr. Doty explained that a similar application was heard and tabled in May 2024 and reviewed surrounding land uses, which include townhomes, a hotel, and both vacant and developed commercial properties. He reported that the Comprehensive Planning and Zoning Board (CPZB) reviewed the application on April 21, 2026, and unanimously recommended approval with five conditions: development in accordance with medium-density residential standards; a maximum of 35 percent lot coverage; required landscape buffers; a one-year expiration period; and a condition requiring the residence to include an A1A Beach Boulevard-facing façade without altering established setbacks. A PowerPoint presentation showing the site location, survey, and proposed elevations was displayed.

The applicant, Scott Patrou, 460 A1A Beach Boulevard, St. Augustine Beach, FL, addressed the Commission regarding the feasibility of commercial or mixed-use development on the site. He stated that the applicant worked collaboratively with the CPZB over an extended period, revising the proposal based on professional feedback. He explained that due to the parcel's limited size, configuration, and parking constraints, meaningful commercial development was not feasible, despite the applicant's experience with mixed-use projects elsewhere in the City. He noted that options including retail, mixed-use, and parking-based commercial models were evaluated but were not economically viable. He highlighted design revisions made in response to CPZB input, particularly reorienting the building façade to face A1A Beach Boulevard, and stated that the applicant agreed to and supported this condition. He also noted that the property has remained vacant and attracted debris and nuisance activity, and expressed that the proposed residence would improve the corridor while complying with regulatory standards.

Commission discussion focused on the appropriateness of authorizing a single-family residence within a commercial district, concerns regarding incremental loss of commercial land and tax base, and whether approval could establish precedent. Some Commissioners emphasized the applicant's good-faith efforts and the likelihood that denial could result in less desirable outcomes, while others expressed concern about erosion of commercial zoning along A1A Beach Boulevard.

Mayor Sweeny opened public comment.

Todd Grant, 55 White Court, St. Augustine Beach, FL, commented that he has worked with Planner Doty in the past, found him to be very professional, and is excited to see him working for the City.

Mayor Sweeny closed public comment.

Motion: To approve the Conditional Use Permit to construct a residence in a commercial land use district at 610 A1A Beach Boulevard. Moved by Vice Mayor Morgan, Seconded by Mayor Sweeny.

Commissioner George	No
Commissioner Samora	No
Mayor Sweeny	Yes
Vice Mayor Morgan	Yes

Motion failed due to a tie vote.

Motion: To recall the vote and table this topic until there are five Commissioners. Moved by Commissioner George. Seconded by Commissioner Samora. Motion passed unanimously.

2. Ordinance 2026-05, Final Reading, to Amend the City Charter to Adopt Language Regarding Term Limits for City Commissioners (Presenter: John Steinmetz, City Attorney)

City Attorney John Steinmetz presented Ordinance 2026-05 on final reading, which proposes ballot language for an amendment to the City Charter to establish term limits for City Commissioners. He advised that the ordinance reflects the work of the Charter Review Committee, whose final report was submitted in 2024, and that all necessary minor revisions had been completed since the prior reading. He reiterated that adoption of the ordinance would authorize placement of the proposed charter amendment on the ballot for voter consideration, rather than directly impose term limits.

Commissioners asked clarifying questions regarding the timeline of the Charter Review Committee process, prior discussions of the issue, and the procedural steps required for placing the question before voters.

Mayor Sweeny opened public comment.

Nick Binder, 232 Big Magnolia Court, St. Augustine Beach, FL, spoke in support of term limits, noted prior unsuccessful efforts, and encouraged approval so voters could decide the matter.

Mayor Sweeny closed public comment.

Following discussion, the Commission considered the ordinance with the understanding that approval would place the proposed charter amendment on the ballot.

Motion: To approve Ordinance 2026-05. **Moved by** Commissioner Samora, **Seconded by** Vice Mayor Morgan. Motion passed unanimously.

XI. CONSENT

(Note: Consent items can be approved by one motion and vote unless a Commissioner wants to remove an item for discussion and separate vote)

3. Budget Resolution 26-07, to Allocate Reserves for Prior Fiscal Year Carryover Expenditures Paid in the Current Fiscal Year
4. Budget Resolution 26-08, to Increase the Fiscal Year 2026 Stormwater Fund Account by $150,000 to Modernize the Linda Mar Subdivision Stormwater Pump Station

Motion: To approve the Consent Agenda. **Moved by** Vice Mayor Morgan, **Seconded by** Commissioner Samora. **Motion** passed unanimously.

XII. OLD BUSINESS

5. Opening of 4th Street between A1A Beach Boulevard and 2nd Avenue: Report on Whether Adjacent Property Owners Agree to Pay Their Share of the Costs (Presenter: Jason Sparks, City Engineer)

City Engineer Jason Sparks provided a follow-up report regarding the potential opening and paving of 4th Street between A1A Beach Boulevard and 2nd Avenue, focusing on whether adjacent property owners agreed to pay their proportional share of the construction costs. He explained that staff had contacted all affected property owners to determine interest and consent. Initial outreach resulted in responses from some owners, with additional follow-up conducted to secure responses from non-responding parcels. He reported mixed feedback, including support contingent upon the City covering all or a portion of the costs, and noted that some parcels on the south side of the street were found to be under new ownership since the initial survey.

Mr. Sparks and Finance Director Douylliez reviewed how cost-sharing could be calculated, including dividing improvement costs based on frontage or number of parcels, and discussed differences between gravel and asphalt paving, utility considerations, and long-term maintenance responsibility. Commissioners asked questions regarding the City's obligations to provide access, the applicability of impact fees, precedents from prior road and sidewalk projects, and whether development-related cost responsibility should rest with private property owners or the City. Discussion also included potential alternatives such as delaying construction until redevelopment occurs, structuring payments over time, or considering partial City participation similar to prior infrastructure projects.

Mayor Sweeny opened public comment.

Scott Patrou, 460 A1A Beach Boulevard, St. Augustine Beach, FL, stated that while he was not opposed to opening the street, clearer definition was needed regarding cost responsibility. He emphasized the distinction between city-created lots and new private developments, noting that in his view the adjacent owners in this case were not acting as developers and should not be required to bear costs in the same manner as new subdivision development. He expressed openness to a defined cost-sharing or reimbursement structure.

Mayor Sweeny closed public comment.

Following discussion, the Commission indicated consensus that no action would be taken at this time. Staff was directed to continue evaluating options, clarify potential funding approaches, and return with additional information and recommendations for future consideration.

6. Regulating the Operation of E-Bikes in the City: Review of Provisions for an Ordinance (Presenter: John Steinmetz, City Attorney)

City Attorney John Steinmetz presented a draft ordinance framework regulating the operation of electric bicycles (e-bikes) within the City for Commission review and discussion. He clarified that the item was not a first reading, but a workshop-style review intended to gather Commission direction before drafting a formal ordinance. Mr. Steinmetz explained that the draft incorporates existing state statutory requirements and local provisions addressing classifications of e-bikes, prohibited vehicles, operational rules, and enforcement mechanisms, while stopping short of an outright ban on e-bikes within the City.

Commissioners discussed several key elements of the draft, including age requirements, speed limits, identification provisions, sidewalk use, and enforcement practicality. Significant discussion focused on whether to retain detailed e-bike classifications or simplify definitions to aid enforcement, with multiple Commissioners favoring a streamlined approach emphasizing reckless operation and speed rather than technical distinctions. The Commission also discussed sidewalk use extensively, expressing concern about pedestrian safety while recognizing practical differences between narrow residential sidewalks and wider, multi-use paths. Commissioners

generally supported allowing limited sidewalk use subject to strict speed reductions near pedestrians, rather than a blanket prohibition.

The Commission reviewed proposed penalties, including a $100 fine, and discussed alternative approaches such as escalating penalties for repeat violations, warnings for juveniles, and parental notification. Concerns were raised about requiring minors to carry government-issued identification, and consensus emerged to remove mandatory ID requirements while relying on existing police identification procedures. Additional discussion addressed impoundment authority, ownership verification, and the regulation of rental e-bike operators, with recognition that many operators already impose internal safety requirements.

Mayor Sweeny opened public comment, being none, she closed public comment.

At the conclusion of the discussion, the Commission provided direction to staff and the City Attorney to refine the draft ordinance based on the feedback received, including simplifying definitions, reconsidering sidewalk regulations, revising identification requirements, and examining graduated penalties. No vote was taken, and no public comment was offered. Staff was directed to return with a revised draft ordinance for formal consideration at a future meeting.

XIII. NEW BUSINESS

7. Review of Long-Range Financial Report and Related Matters (Presenter: Patty Douylliez, Finance Director)

Finance Director Patty Douylliez presented the City's Fiscal Year 2026 Long-Range Financial Plan and provided an overview of current economic conditions, revenue trends, expenditure pressures, and multi-year projections. Using a PowerPoint presentation [Exhibit F] for reference, she reported that property values and ad valorem tax revenues continue to trend upward, contributing to overall revenue growth. However, she noted variability and slight declines in certain state-distributed revenues, including portions of state sales tax revenue sharing, which staff are monitoring closely during the ongoing budget season. She explained that while these declines are relatively modest, continued tracking is necessary due to potential cumulative impacts.

She reviewed historical and projected revenues and expenditures, highlighting increasing operating costs, particularly in insurance. She reported that property, auto, and medical insurance costs have risen significantly in recent years, with medical insurance increasing by approximately 48 percent, consistent with trends experienced by neighboring jurisdictions. She advised that staff are meeting with providers to evaluate alternative benefit structures and cost-containment strategies while maintaining adequate coverage and employee benefits. Inflationary pressures affecting fuel, paving materials, and other operational expenses were also discussed.

She further reviewed fund balances, capital expenditures, and long-term debt obligations, noting that the City maintains adequate reserves but will continue to rely on careful forecasting, grant funding, and state and federal appropriations to support major capital projects. She explained anticipated capital spending fluctuations, timing delays related to reimbursements, and the importance of maintaining sufficient liquidity to respond to emergencies, particularly given uncertainties surrounding future FEMA reimbursement processes.

Commissioners asked questions regarding revenue assumptions, sales tax trends, the impact of inflation, insurance cost drivers, medical plan options, and the balancing of fiscal responsibility with employee retention. Finance Director Douylliez emphasized that the long-range plan is a planning tool subject to refinement as budget development proceeds and external conditions change.

XIV. STAFF COMMENTS

City Manager Royle commented on the SUN Trail discussion, noting that it was being proposed to run along Valencia Street in St. Augustine. He stated that potential design elements had been discussed with representatives at a VCB meeting and noted that some design efforts may have been paused or revised. Mr. Royle also acknowledged recent improvements at Lakeside Park, complimenting staff for the nighttime accent lighting.

Engineering Director Sparks reported that the City had received a draft easement from the County consisting of a 25-foot-wide strip extending from the eastern right-of-way boundary between Pope Road and A Street, which could support future infrastructure or trail planning efforts.

Public Works Director Adams provided an update on stormwater and infrastructure projects completed ahead of hurricane season. He reported the installation of new pumps and related improvements at Ocean Side Circle and Magnolia Dunes, noting these projects improve system reliability and preparedness. He also announced recent completion of playground mulch installation, with final inspection pending, and stated that staff were continuing seasonal preparedness activities.

Finance Director Douylliez commended Melissa Keenan for the successful Art and Bark in the Park event held on May 3 and reported that the Cultural Council also expressed positive feedback regarding the event. She noted that six dogs were adopted during the event, including four from the St. Johns County Pet Center. She further advised that information would be released soon regarding a new Night Market planned for July.

XV. ADJOURNMENT

Mayor Sweeny adjourned the meeting at 9:41 p.m.

Beth Sweeny, Mayor

ATTEST:

Dariana Fitzgerald, City Clerk

Brenda Dirkse, 638 Bowers Court, St. Augustine, FL 32080

I am a Tobacco Treatment Specialist. I am here as both a community advocate and a proud member of Tobacco Free St. Johns.

I respectfully ask the City Commission to consider aligning with St. John's County Board of County Commissioners following their recent action to pass an ordinance prohibiting smoking and vaping on all county beaches and in all county parks.

At this time, Ocean Hammock Park and Lakeside Park-including the Veteran's Memorial and Sculpture Garden-remain the only beach and park spaces in St. John's county that are not tobacco free.

Aligning with the county's ordinance would create consistency across our community, protect public health, reduce environmental impact, and support a cleaner, safer experience for residents and visitors alike.

Thank you for your time and consideration.

Exhibit A-1

Date 5-04-2026

135 words

3	**AGENDA ITEM** **ST. JOHNS COUNTY BOARD OF COUNTY COMMISSIONERS**
	Deadline for Submission - Wednesday 9 a.m. – Thirteen Days Prior to BCC Meeting

12/2/2025

BCC MEETING DATE

TO: **Joy Andrews, County Administrator** **DATE:** **October 3, 2025**

FROM: **Lex Taylor, Deputy County Attorney** **PHONE:** **904 209-0807**

SUBJECT OR TITLE: **Second Reading of Ordinance amending the St. Johns County Park Ordinance, adding definitions; adding prohibition of smoking and vaping in St. Johns County beaches and parks; amending to include cigarette butts and vaping paraphernalia as defined litter.**

AGENDA TYPE: **Business Item, Ordinance, Public Hearing**

BACKGROUND INFORMATION:

Article VIII, Section 2 of the Florida Constitution, and Chapter 166, Florida Statutes, provide Counties the authority to exercise any power for municipal purposes, except if prohibited by law, and to adopt ordinances in furtherance of such authority. As of July 1, 2022, the Florida Legislature enacted Ch. 2022-13, Laws of Florida, which permits municipalities and counties to restrict smoking on their local beaches and in local parks. The Board has adopted Ordinance 2005-114, pertaining to public conduct in county parks (the "St. Johns County Parks Ordinance"). the Board has adopted Ordinance 2007-19, which was amended by Ordinance 2007-50, Ordinance 2009-60, 2013-25 and Ordinance 2024-5, pertaining to public conduct in county beaches (the "St. Johns County Beach Code"). At the St. Johns County Board meeting of August 20, 2025, appeared Charli Clay, a 7th grade student at Washington Classical Christian School, Izzy Howell, an 8th grade student; and Anila Lahiri, a history teacher at Washington Classical Christian School and the Civic Engagement Liaison at Anchor Faith Church who advocated for prohibiting smoking and vaping on St. Johns County beaches. This is the Second Hearing.

1. IS FUNDING REQUIRED? No **2. IF YES, INDICATE IF BUDGETED.** No

IF FUNDING IS REQUIRED, MANDATORY OMB REVIEW IS REQUIRED:

INDICATE FUNDING SOURCE:

SUGGESTED MOTION/RECOMMENDATION/ACTION:

Motion to enact Ordinance 2025-_____, prohibiting smoking and vaping on St. Johns County Beaches and including cigarette butts and vaping paraphernalia in the definition of liter.

Exhibit A-2

Date 5-04-2026

For Administration Use Only:
Legal: Rich Komando 11/7/2025 **OMB: Christopher Thompson 11/10/2025** **Admin: Brad Bradley 11/17/2025**

ORDINANCE NO. 2025-____

AN ORDINANCE OF ST. JOHNS COUNTY, FLORIDA, AMENDING THE ST. JOHNS COUNTY PARK ORDINANCE 2005-114, SPECIFICALLY SECTION 4, ADDING DEFINITIONS; CREATING SECTION 20 TO PROHIBIT SMOKING AND VAPING AT ST. JOHNS COUNTY BEACHES AND PARKS; AMENDING SECTION 31 RELATED TO LITTER; ALSO AMENDING ST. JOHNS COUNTY'S BEACH CODE ORDINANCE 2007-19 AS AMENDED, SPECIFICALLY SECTION 1.01 DEFINITIONS; AMENDING SECTION 3.02 TO PROHIBIT SMOKING AND VAPING ON ST. JOHNS COUNTY BEACHES; AMENDING SECTION 3.09(a) RELATED TO LITTER; MAKING FINDINGS OF FACT; PROVIDING A SAVINGS CLAUSE; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, Board of County Commissioners of St. Johns County, Florida (the "Board") is the governing body for St. Johns County, Florida; and

WHEREAS, the Board is authorized pursuant to Article VIII, Section 2 of the Florida Constitution, and Chapters 166 and Chapter 125, Florida Statutes, to enact Ordinances necessary to protect the health safety and wellbeing of its citizens; and

WHEREAS, as of July 1, 2022, the Florida Legislature enacted Ch. 2022-13, Laws of Florida, which permits counties to restrict smoking on their local beaches and at parks; and

WHEREAS, the Board adopted Ordinance 2005-114, pertaining to public conduct in county parks (the "St. Johns County Parks Ordinance"); and

WHEREAS, the Board adopted Ordinance 2007-19, which was amended by Ordinance 2007-50, Ordinance 2009-60, 2013-25 and Ordinance 2024-5, pertaining to public conduct in county beaches (the "St. Johns County Beach Code"); and

WHEREAS, at the St. Johns County Board meeting of August 20, 2025, appeared Charli Clay, a 7th grade student at Washington Classical Christian School, Izzy Howell, an 8th grade student; and Anila Lahiri, a history teacher at Washington Classical Christian School and the Civic Engagement Liaison at Anchor Faith Church who advocated for prohibiting smoking and vaping on St. Johns County beaches; and

WHEREAS, a 2006 U.S. Surgeon General's report states, "The Health Consequences of Involuntary Exposure to Tobacco Smoke", secondhand smoke (also known as environmental tobacco smoke, defined as smoke emitted from lighted, smoldering, or burning tobacco when the smoker is not inhaling, smoke emitted by the mouthpiece during puff drawing, and smoke exhaled by the smoker) causes coronary artery disease, asthma attacks, heart disease, heart attacks, stroke, and lung cancer in adults and Sudden Infant Death Syndrome, middle ear infections, bronchitis, asthma, pneumonia, and low birthweight in children; and

Exhibit A-3

Date 5-04-2026

WHEREAS, secondhand smoke is especially dangerous to children whose bodies are still developing and who are particularly vulnerable to the poisons of secondhand smoke; and

WHEREAS, prohibiting smoking on County beaches and at parks frequented by children and adults will help to reduce smoking-related illnesses and serve to improve health outcomes for residents and visitors; and

WHEREAS, another detrimental issue related to smoking on County beaches and parks is litter consisting of used cigarette filters, also known as "cigarette butts" and vaping paraphernalia, which contain hazardous substances that can be toxic to animals, and this Ordinance is intended to protect the environment from litter that can be toxic to animals and humans; and

WHEREAS, research conducted by the Ocean Conservancy, a nonprofit environmental advocacy group, found that cigarette butts are the fourth most harmful type of litter to marine life due to ingestion and contamination of the environment, and thus harm seabirds, sea turtles and marine mammals; and

WHEREAS, pursuant to Section 166.041(c)(2), Florida Statutes, notice was given by publication in a newspaper of general circulation in the County, notifying the public of this proposed Ordinance and of the time and dates of the public hearings; and

WHEREAS, two (2) public hearings were held before the Board pursuant to the published notice described above; and

WHEREAS, the Board has determined that it is in the interest of the public health, safety and welfare that the St. Johns County Parks Ordinance and the St. Johns County Beach Code be amended to prohibit smoking and vaping at all public beaches and parks, in accordance with Section 386.209, Florida Statutes as amended; and

WHEREAS, the Board finds that St. Johns County Ordinance No. 2025-__ will preserve, promote, and protect the health, safety, and welfare of its citizens.

NOW, THEREFORE, BE IT ORDAINED BY THE BOARD OF COUNTY COMMISSIONERS OF ST. JOHNS COUNTY, FLORIDA,AS FOLLOWS:

Section 1. Recitals. The above recitals are adopted as legislative findings by the St. Johns County Board of County Commissioners and incorporated and made a material part of this Ordinance.

Section 2. Definitions. Section 4 of St. Johns County Ordinance 2005-114 is amended to add the following definitions:

SMOKE / SMOKING – means inhaling, exhaling, burning, carrying, or possessing any lighted tobacco product, or electronic nicotine or vaping product, including cigarettes, cigars, pipe tobacco, electronic pens, e-cigarettes and any other lighted tobacco or electronic vaping product, in accordance with § 386.209, F.S.

Exhibit A-4

Date 5-04-2026

VAPE / VAPING – means to inhale or exhale vapor produced by a vapor generating electronic device or to possess a vapor-generating electronic device while that device is actively employing an electronic, a chemical, or a mechanical means designed to produce vapor or aerosol from a nicotine product or any other substance. The term does not include the mere possession of a vapor-generating electronic device.

VAPING PARAPHERNALIA -- means all equipment, products, and materials of any kind which are used, intended for use, or designed for use in packaging, repackaging, storing, containing, transporting, inhaling, or otherwise introducing into the human body vapor or aerosol from a nicotine product or any other substance.

Section 3. Section 20 of St. Johns County Ordinance 2005-114 is amended as follows:

Section 20. Smoking and vaping.

(a) It shall be prohibited for any person on the beach or in the Atlantic Ocean within 600 feet of the County Beach Shoreline to smoke or vape.
(b) It shall be prohibited for any person to smoke or vape within the County's park property.
(c) In accordance with § 386.209, F.S. the County's smoking restrictions do not include the use of unfiltered cigars.
(d) Notwithstanding the prohibition set forth in paragraph (a) above, the possession of Tobacco and Vaping paraphernalia in sealed original packages in any vehicle, vessel, or conveyance for purposes of storing or transporting such and not for purposes of selling or consuming such within park property are not a violation of this Ordinance.
(e) The permission granted under this section shall be subject to all ordinances, laws, rules and regulations applicable in the County, and any grantee shall be responsible for compliance thereto. The permission granted may also be subject to, and granted with, specific conditions as set forth by the department, and the grantee shall be responsible for insuring compliance thereto.

Section 4. Section 31 of St. Johns County Ordinance 2005-114 is amended as follows:

Section 3~~1~~2. Refuse, trash and litter.

(a) No person shall take into, dump, deposit or litter any bottles, broken glass, ashes, printed material, cigarette butts, vaping paraphernalia, paper, boxes, cans, dirt, rubbish, waste, garbage, refuse or other trash upon any park property. Persons shall place all bottles, broken glass, ashes, printed material, paper, boxes, cans, dirt, rubbish, waste, garbage, refuse or other trash in the proper receptacles where provided; where receptacles are not provided, same shall be carried away from park property by the person or persons responsible for its presence and properly disposed of elsewhere.

Exhibit A-5
Date 5-04-2026

(b) No person shall affix printed material or any other item to any vehicle or property within park property other than his or her own vehicle.

Section 5. **Definitions.** Section 1.01 Definitions of St. Johns County Ordinance 2007-19 is amended as follows:

SMOKE / SMOKING – means inhaling, exhaling, burning, carrying, or possessing any lighted tobacco product, or electronic nicotine or vaping product, including cigarettes, cigars, pipe tobacco, electronic pens, e-cigarettes and any other lighted tobacco or electronic vaping product, in accordance with § 386.209, F.S..

VAPE / VAPING – means to inhale or exhale vapor produced by a vapor generating electronic device or to possess a vapor-generating electronic device while that device is actively employing an electronic, a chemical, or a mechanical means designed to produce vapor or aerosol from a nicotine product or any other substance. The term does not include the mere possession of a vapor-generating electronic device.

VAPING PARAPHERNALIA -- means all equipment, products, and materials of any kind which are used, intended for use, or designed for use in packaging, repackaging, storing, containing, transporting, inhaling, or otherwise introducing into the human body vapor or aerosol from a nicotine product or any other substance.

Section 6. Section 3 of St. Johns County Ordinance 2007-19 is amended as follows:

Section 3.011 Smoking or Vaping Prohibited on Beach.

It shall be prohibited for any person on the beach or in the Atlantic Ocean within 600 feet of the County Beach Shoreline to smoke or vape, in accordance with § 386.209, F.S..

Section 3.09 Litter

(a) It shall be prohibited for any person to discard or otherwise dispose of or abandon any trash, garbage, bottles, cigarette butts, vaping paraphernalia, containers, cans, dead fish, or other parts thereof, or any other litter, except in designated containers for that purpose. It is further unlawful to dispose of any household garbage on the beach.

(b) Any personal property including but not limited to tents shelters, chairs, catamarans, trailers, towels, shoes, and other such items that are left on the beach overnight is hereby declared a public nuisance and shall be subject to removal from the beach with other beach trash and debris.

Section 7. Directions to the codifier. It is the intention of the Board of County Commissioners of St. Johns County, Florida that this ordinance shall become and be made a part of the St. Johns County Code, and that when codified; the sections and paragraphs of this ordinance may be renumbered or re-lettered to accomplish such intention.

Exhibit A-6

Date 5-04-2026

Section 8. **Savings Clause**. The remaining portions of St. Johns County Ordinance 2007-19, as previously amended, shall remain in full force and effect.

Section 9. **Conflicts.** This Ordinance is in addition to the Laws of Florida and shall not limit or reduce said laws or penalties. In the event this Ordinance conflicts with any other applicable regulation or law on any given provision, the more restrictive shall apply, unless preempted by state or federal law.

Section 10. **Severance Clause**. It is the intent of the Board of County Commissioners of St. Johns County, and is hereby provided, that if any section, subsection, sentence, clause, phrase or provision of this Ordinance is held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not be construed as to render invalid or unconstitutional the remaining sections, subsections, sentences, clauses, phrases, or provision of this Ordinance.

Section 11. Scrivener's Errors. Typographical errors and other matters of a similar nature that do not affect the intent of this Ordinance, as determined by the County Clerk and County Attorney, may be corrected with the endorsement of the County Administrator without the need for public hearing or further action by the Board.

Section 12. **Codification.** The Board intends that this Ordinance will be made a part of the St. Johns County Parks Ordinance.

Section 13. **Effective Date.** This Ordinance shall take effect upon its being filed with the Department of State of Florida.

PASSED AND ENACTED by the Board of County Commissioners of St. Johns County, Florida, this ____ day of _____ 2025.

BOARD OF COUNTY COMMISSIONERS
OF ST. JOHNS COUNTY, FLORIDA

By: _____
Krista Joseph, Chair

ATTEST: Brandon J. Patty,
Clerk of Court & Comptroller

By: _____
Deputy Clerk

Effective Date: _____

Exhibit A-7
Date 5-04-2026

LOCALiQ

FLORIDA

PO Box 631244 Cincinnati, OH 45263-1244

AFFIDAVIT OF PUBLICATION

Brandon Patty, Clerk of Circuit Attn: Artricia Allen Deputy Cler
Brandon Patty, Clerk of Circuit Court & Comptroller
4010 Lewis Speedway
St Augustine FL 32084-8637

STATE OF WISCONSIN, COUNTY OF BROWN

Before the undersigned authority personally appeared, who on oath says that he or she is the Legal Coordinator of the St Augustine Record, published in St Johns County, Florida; that the attached copy of advertisement, being a Public Notices, was published on the publicly accessible website of St Johns County, Florida, or in a newspaper by print in the issues of, on:

SAG St Augustine Record 11/17/2025
SAG staugustine.com 11/17/2025

Affiant further says that the website or newspaper complies with all legal requirements for publication in chapter 50, Florida Statutes.
Subscribed and sworn to before me, by the legal clerk, who is personally known to me, on 11/17/2025

K. Gau
Legal Clerk

Notary, State of WI, County of Brown

8.25.26
My commission expires

Publication Cost:	$120.32	
Tax Amount:	$0.00	
Payment Cost:	$120.32	
Order No:	11797964	# of Copies:
Customer No:	764114	1
PO #:		

THIS IS NOT AN INVOICE!

Please do not use this form for payment remittance.

MARIAH VERHAGEN
Notary Public
State of Wisconsin

NOTICE OF PUBLIC HEARING OF THE ST. JOHNS COUNTY BOARD OF COUNTY COMMISSIONERS

NOTICE IS HEREBY GIVEN that the Board of County Commissioners of St. Johns County, Florida, will hold a public hearing to consider adoption of the following ordinance at a regular meeting on Tuesday, December 2, 2025, at 9:00 a.m. in the County Auditorium at the County Administration Building, 500 San Sebastian View, St. Augustine, Florida:

AN ORDINANCE OF ST. JOHNS COUNTY, FLORIDA, AMENDING THE ST. JOHNS COUNTY PARK ORDINANCE 2005-114, SPECIFICALLY SECTION 4, ADDING DEFINITIONS; CREATING SECTION 20 TO PROHIBIT SMOKING AND VAPING AT ST. JOHNS COUNTY BEACHES AND PARKS; AMENDING SECTION 31 RELATED TO LITTER; ALSO AMENDING ST. JOHNS COUNTY'S BEACH CODE ORDINANCE 2007-19 AS AMENDED, SPECIFICALLY SECTION 1.01 DEFINITIONS; AMENDING SECTION 3.02 TO PROHIBIT SMOKING AND VAPING ON ST. JOHNS COUNTY BEACHES; AMENDING SECTION 3.09(a) RELATED TO LITTER; MAKING FINDINGS OF FACT; PROVIDING A SAVINGS CLAUSE; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE. PROVIDING A SAVINGS CLAUSE; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

The proposed ordinance is on file in the office of the Clerk of the Board of County Commissioners at the Richard O. Watson Judicial Center, 4010 Lewis Speedway, St. Augustine, Florida, and may be examined by interested parties prior to the said public hearing. Please take note that the proposed ordinance is subject to revision prior to hearing of adoption. All parties having any interest in said ordinance will be afforded an opportunity to be heard at the public hearing.

If a person decides to appeal any decision made with respect to any matter considered at the hearing, such person will need a record of the proceedings, and for such purposes he/she may need to ensure that a verbatim record of the proceedings is made, which record includes the testimony and evidence upon which the appeal is to be based.

NOTICE TO PERSONS NEEDING SPECIAL ACCOMMODATIONS AND TO ALL HEARING-IMPAIRED PERSONS: In accordance with the Americans with Disabilities Act, persons needing a special accommodation to participate in this proceeding should contact the ADA Coordinator, at (904) 209-0400 or at the Facilities Management Department, 2416 Dobbs Road, St. Augustine, FL 32086. For hearing-impaired individuals: Florida Relay Service: 1-800-955-8770, no later than 5 days prior to the date of this hearing.

BOARD OF COUNTY COMMISSIONERS OF ST. JOHNS COUNTY, FLORIDA
BRANDON J. PATTY, ITS CLERK
By: ARTRICIA K. ALLEN, Deputy Clerk

Exhibit A-8
Date 5-04-2026



SEGMENT 3 | CITY OF ST. AUGUSTINE BEACH

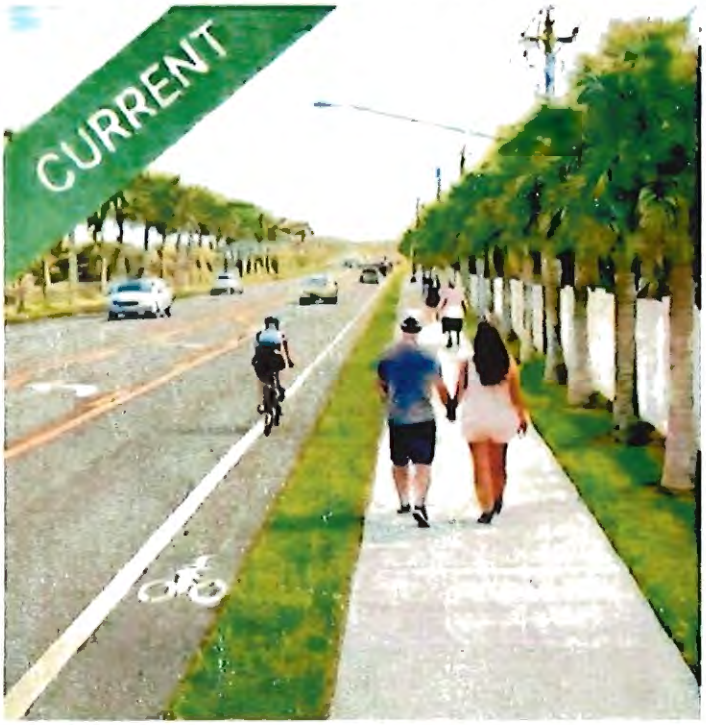
Exhibit B

Date 5-04-2026

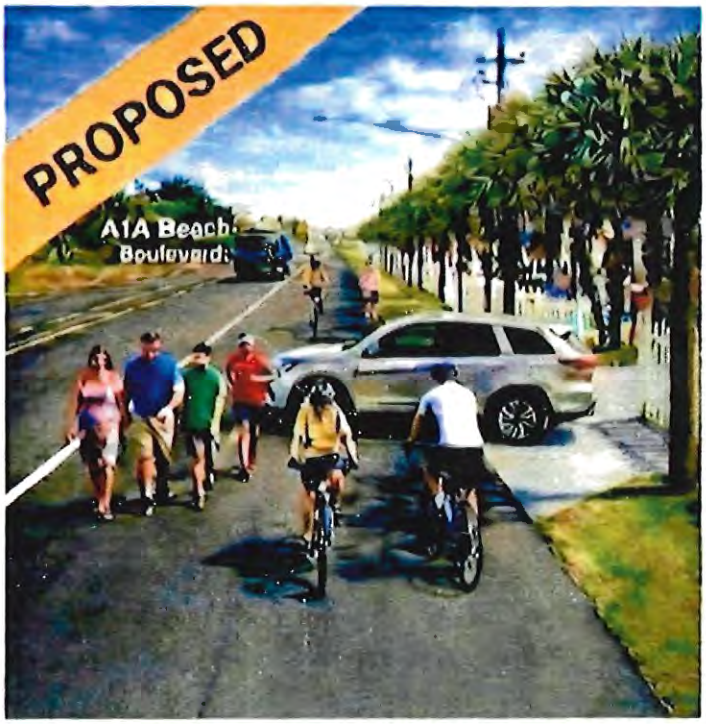
Worthy goal, wrong location

SUN Trail will change A1A Beach Blvd

- **The public is unaware of this fundamental change**
- **Creates new safety hazards:** pedestrian/bicycles/vehicles
- **Eliminates important west side bike Lane**
- **Changes the character of A1A Beach Boulevard**
- **12 foot asphalt trail adds to stormwater runoff**



Current 5 foot wide bike lane
with 18-inch grass strip buffer



56 streets and driveways creating safety hazards

SIGN THE PETITION TODAY!

SCAN THE CODE

SCAN THE QR CODE

https://c.org/RR6HZHPMfN

Exhibit C

Date 5-04-2026


Date

Outlook

Discover The history Of City of St Augustine

From Tom Reynolds <thomasfreynolds@yahoo.com>
Date Mon 4/13/2026 1:42 PM
To The UPS Store #0939 <store0939@theupsstore.com>

CAUTION! This email originated from outside of the organization. Please do not open attachments or click links from an unknown or suspicious origin.

Discover The history Of City of St Augustine

Our experienced chauffeur will guide you through an unforgettable expedition on our electric, horseless carriages. See our architectural landmarks and learn the fascinating and rich history of historic City of St Augustine This immersive experience embeds you in multiple centuries.

Find comfort when you board the luxurious opulence of yesterday's gilded carriage and take a historic tour in today's sustainable, state-of-the-art, electric horseless carriages.

Reservations Strongly Suggested.

Exhibit _____

Date 5-04-2026

City Commission Conditional Use CU2026-01

610 A1A Beach Blvd

PATRICK DOTY AICP, CFM
SENIOR PLANNER
PLANNING & ZONING DIVISION

May 4, 2026

1

Conditional Use Request

Single-Family Residence in a Commercial District.

REQUEST / CASE NO	CU-2026-01
Applicant / Owner	Scott Patrou / 610 A1A Properties LLC
Property Address	610 A1A Beach Blvd / 169890-0000
Zoning District	Commercial
Future Land Use	Commercial
Size of Property	0.140 acres / ~6,098 sq. ft.
Site Improvements	None, Vacant
Flood zone / Seaward of CCCL?	X-shaded / No

2

Exhibit E-1
Date 5-04-2026

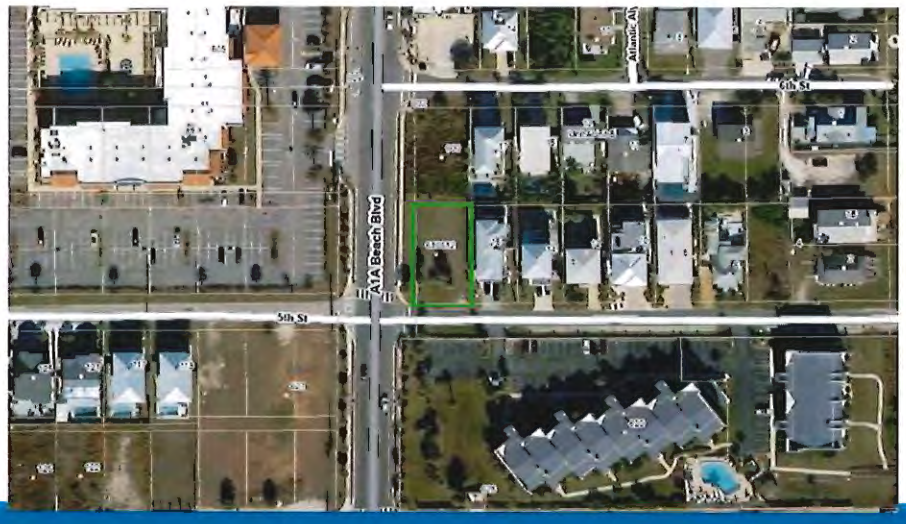
Property History & Surrounding Uses

- This property was the subject of conditional use CU2024-04, requesting a single-family home on a commercially zoned parcel, that was heard at the May 21, 2024.
  - This item was tabled due to indecision. Minutes from that hearing are provided in the agenda packet.

	Zoning	Land Use	Developed
North	Commercial	Commercial	No, Vacant
South	High Density Residential	High Density	Yes, Townhomes
West	PUD	Commercial	Yes, Hotel
East	Commercial	Commercial	Yes, Single-Family Residence

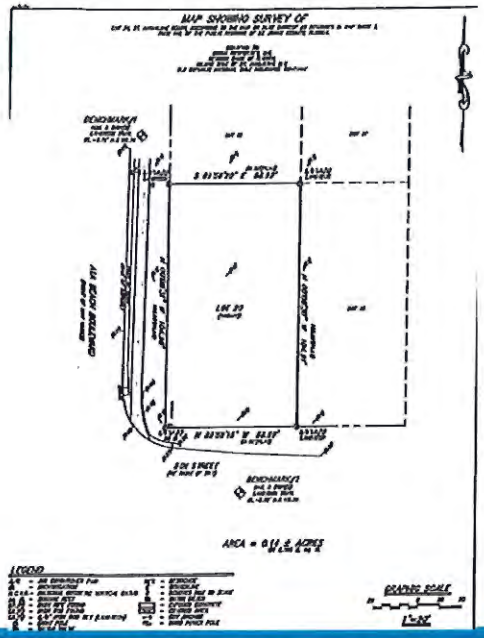
3

Site Location



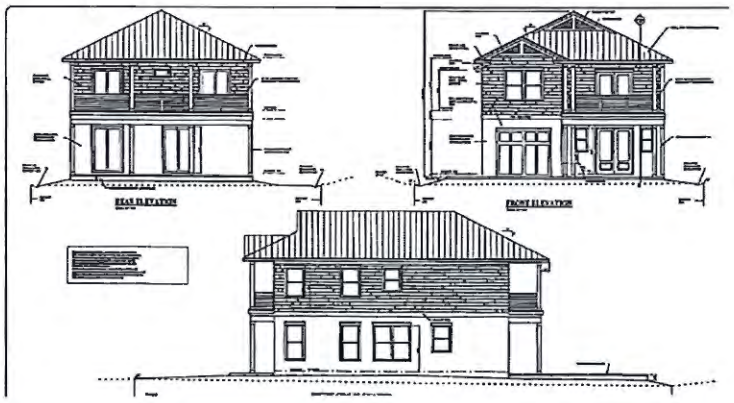
4

Survey



5

Elevations of Proposed Single-Family



6

Procedural

- This request was heard by the PZB on April 21st ad they made a 5-0 recommendation to the City Commission to **Approve** this Conditional Use Request **with five (5) conditions.**
- The motion today will be a decision to approve or deny the request.



7

PZB Recommendation - APPROVE WITH CONDITIONS

The PZB has reviewed the application submittal for compliance with Land Development Regulations and Comprehensive plan policies and has found the request to be compliant with requirements established for granting a conditional use for a single-family home within a commercial district with conditions.

The following conditions are recommended by the Planning and Zoning Board for this conditional use request:

1. The site shall be developed in accordance with medium density single-family residential regulations established in LDR Sec. 6.01.00.
2. A maximum of 35% lot coverage as it is a residential use and shall be regulated as such.
3. Buffers are required as established in LDR 6.06.04.
4. This request shall expire one (1) year following approval consistent with LDR Sec. 10.03.02. and is subject to the entirety of section.
5. The Applicant shall have a A1A Beach Blvd facing façade without changing the established setbacks.

8



Questions?

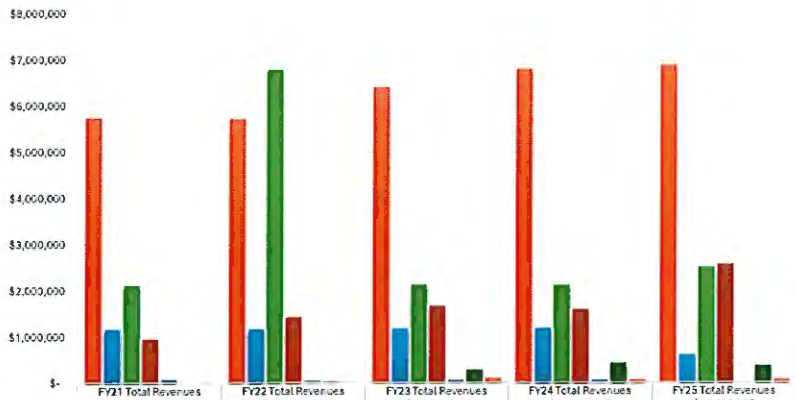
Patrick Doty AICP, CFM - Senior Planner - Planning & Zoning Division

9

FY26
LONG RANGE FINANCIAL PLAN

1

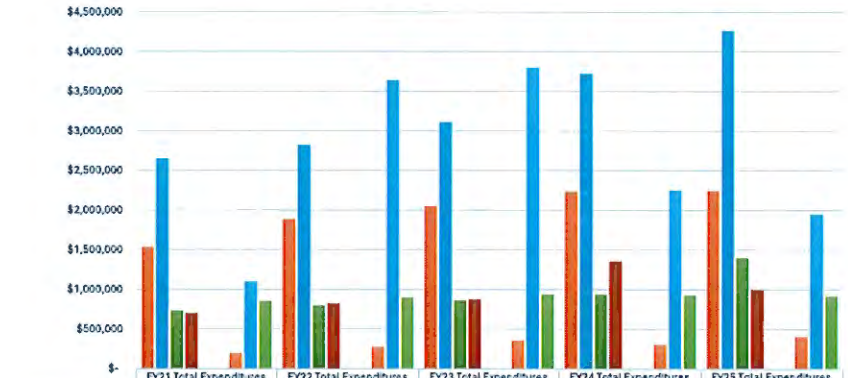
Historical Revenues
FY21 - FY25



	FY21 Total Revenues	FY22 Total Revenues	FY23 Total Revenues	FY24 Total Revenues	FY25 Total Revenues
	$10,054,717	$15,164,738	$11,605,160	$12,187,267	$13,001,695
Taxes	$5,737,474	$5,703,936	$6,390,691	$6,782,232	6,663,072
Licenses & Permits	1,164,069	1,166,321	1,160,351	1,185,861	608,342
Intergovernmental	2,104,699	6,780,076	2,119,358	2,113,453	2,508,219
Charges for Services	950,267	1,418,060	1,663,586	1,585,611	2,562,552
Fines & Forfeitures	70,703	43,336	58,745	46,151	25,143
Interest	6,604	30,570	286,148	417,520	364,531
Miscellaneous	20,901	17,439	106,082	56,437	69,836

2

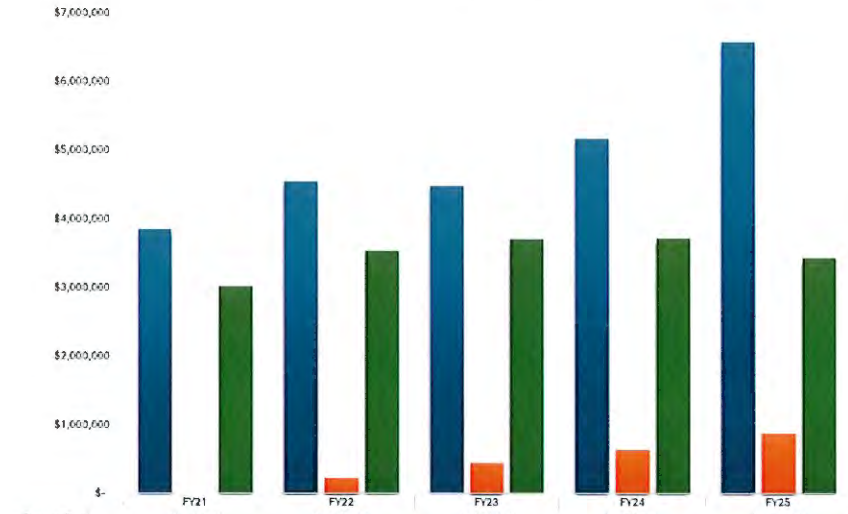
Historic Expenditures
FY21-FY25



	FY21 Total Expenditures $7,762,232	FY22 Total Expenditures $11,128,526	FY23 Total Expenditures $11,986,184	FY24 Total Expenditures $11,726,148	FY25 Total Expenditures $12,159,920
General Government	$1,533,559	$1,882,500	$2,047,757	$2,235,551	$2,244,088
Public Safety	2,649,187	2,821,545	3,107,468	3,721,279	4,262,045
Physical Environment	734,466	796,666	861,849	937,429	1,395,768
Transportation	699,715	818,649	673,891	1,352,513	993,368
Economic Environment	-	-	-	-	-
Human Services	-	-	-	-	-
Culture & Recreation	191,845	273,422	354,419	302,497	404,327
Capital Outlay	1,098,854	3,638,305	3,800,493	2,249,055	1,949,769
Debt	854,606	897,439	940,307	927,824	910,556

3

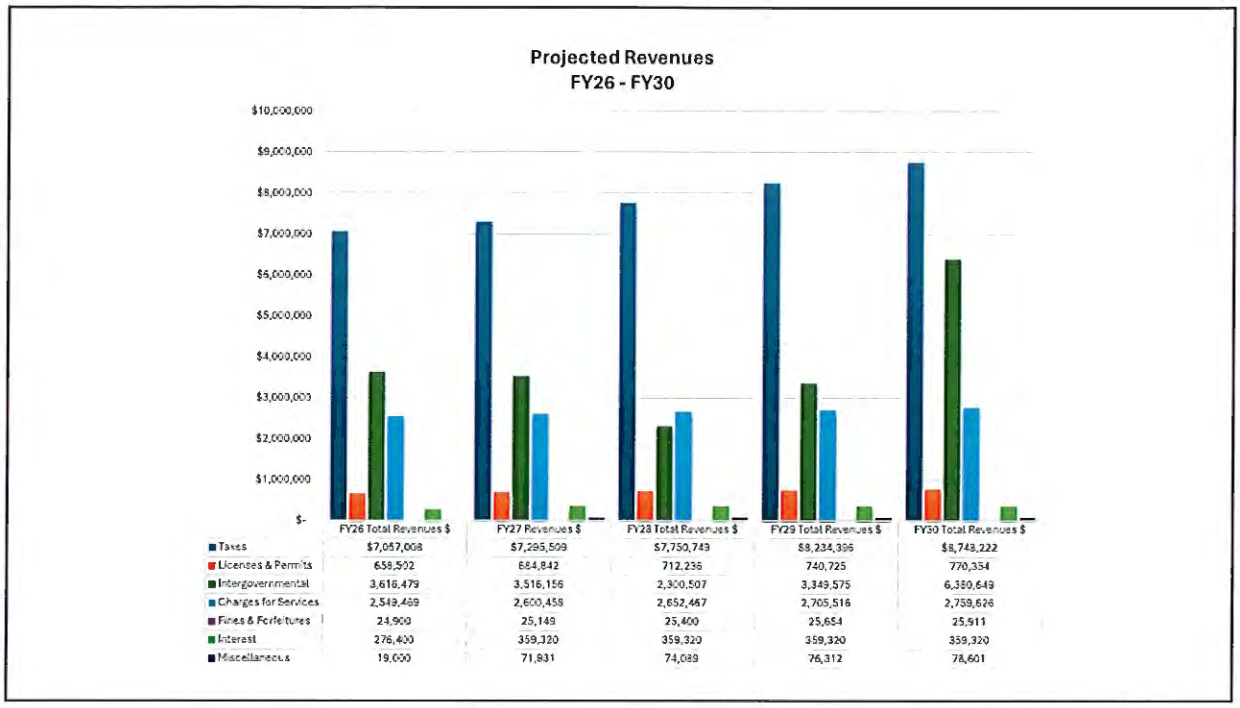
Historical Fund Balance
FY21-FY25



	FY21	FY22	FY23	FY24	FY25
General Fund	$3,844,925	$4,542,406	$4,475,141	$5,165,227	$6,572,420
Road & Bridge Fund	4,340	222,437	441,566	639,787	877,166
Debt Service	3,012,408	3,530,509	3,697,035	3,712,505	3,428,174

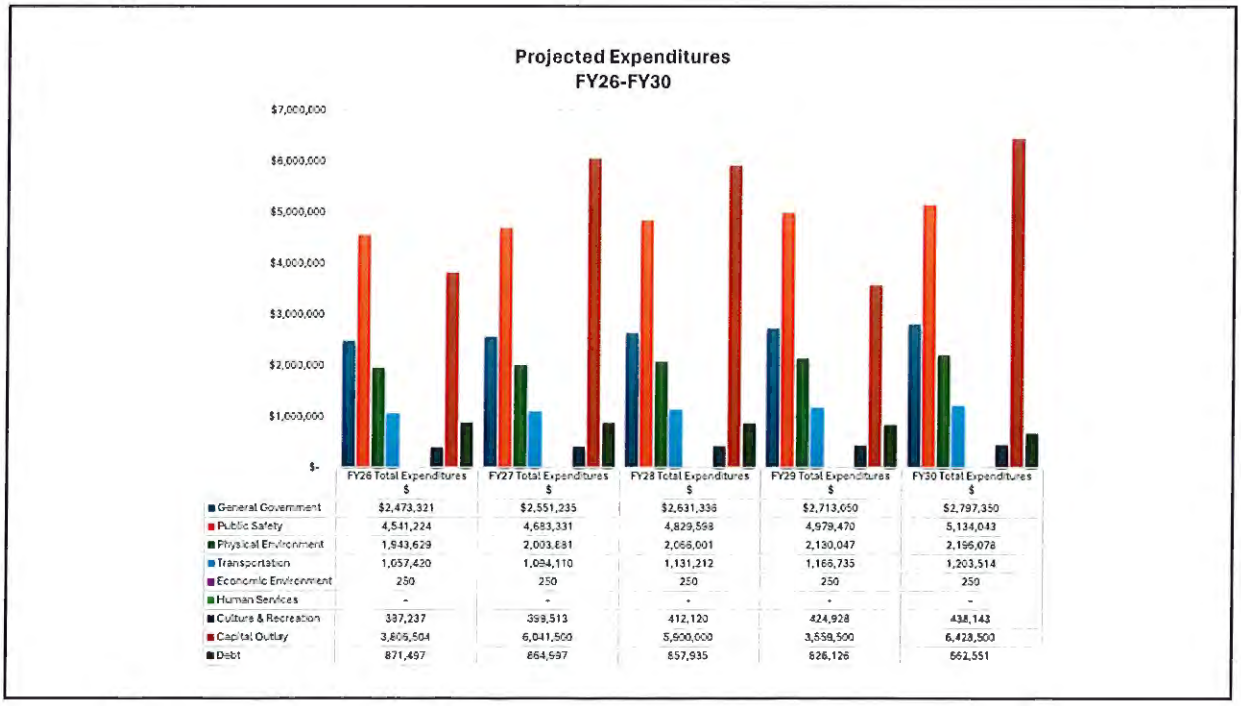
4

Exhibit F-2
Date 5-04-2026



	FY26 Total Revenues $	FY27 Revenues $	FY28 Total Revenues $	FY29 Total Revenues $	FY30 Total Revenues $
Taxes	$7,057,008	$7,295,509	$7,750,749	$8,234,396	$8,743,222
Licenses & Permits	658,502	684,842	712,236	740,725	770,354
Intergovernmental	3,616,479	3,516,156	2,300,507	3,349,575	6,380,649
Charges for Services	2,549,469	2,600,458	2,652,467	2,705,516	2,759,626
Fines & Forfeitures	24,900	25,149	25,400	25,654	25,911
Interest	276,400	359,320	359,320	359,320	359,320
Miscellaneous	19,000	71,831	74,089	76,312	78,601

5



	FY26 Total Expenditures $	FY27 Total Expenditures $	FY28 Total Expenditures $	FY29 Total Expenditures $	FY30 Total Expenditures $
General Government	$2,473,321	$2,551,235	$2,631,336	$2,713,050	$2,797,350
Public Safety	4,541,224	4,683,331	4,829,598	4,979,470	5,134,043
Physical Environment	1,943,629	2,003,681	2,066,001	2,130,047	2,196,078
Transportation	1,057,420	1,084,110	1,131,212	1,166,735	1,203,514
Economic Environment	250	250	250	250	250
Human Services	-	-	-	-	-
Culture & Recreation	387,237	398,513	412,120	424,928	438,143
Capital Outlay	3,805,564	6,041,500	5,600,000	3,558,500	6,428,500
Debt	871,497	864,597	857,935	826,126	662,551

6

Structural Deficit Risk

Year	Revenue	Expenditures	Reserves	Surplus/Deficit
FY26*	$14,201,758	$15,081,082	$1,150,632	$271,308
FY27	$14,553,365	$17,638,817	$624,824	-$2,460,628
FY28	$13,874,768	$17,828,452	$632,413	-$3,321,271
FY29	$15,491,498	$15,800,106	$490,007	$181,399
FY30	$19,122,683	$18,860,429	$290,084	$552,338

* FY26 was budgeted with money being pulled from reserves for ARPA, Impact Fees, Debt Service, Building Department, and General Fund Unassigned Fund for multiple projects.

Reserves for all other years currently indicate only Debt Service Funds.

Significant Deficits will need to be funded with current reserves or possible grants for additional capital projects budgeted in FY27 & FY28.

7

Debt Service Balance as of 2026
Bonds 2009, 2016A, 2016B, 2016C, 2016D

Principal	$3,801,615
Interest	$800,426
Fees	$69,133
Total	$4,671,174

Bond ID	Payoff Year
2009	FY29
2016A	FY47
2016B	FY29
2016C	FY35
2016D	FY30

DEBT SERVICE FUND BALANCE	$3,428,174
OUTSTANDING DEBT	$4,671,174
DEFICIT	-$1,243,000

ANNUAL DEBT SERVICE PAYMENT FROM GENERAL	$62,150

8

Exhibit F-4
Date 5-04-2026

Fuel Costs FY26

	Unleaded Price/Gallon	Diesel Price/Gallon
25-Oct	$2.482	$2.981
25-Nov	$2.489	$3.114
25-Dec	$2.426	$2.909
26-Jan	$2.644	$3.301
26-Feb	$2.679	$3.396
26-Mar	$3.798	$5.209
26-Apr		
	53.00%	75.00%

9